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CASE #	CASE NAME	HEARING NAME
CVPS2500640	LOW VS PGA WEST FAIRWAYS ASSOCIATION, A CA NON-PROFIT MUTUAL BENEFIT COMMON INTEREST DEVELOPMENT CORPORATION	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON 1ST AMENDED COMPLAINT OF PATRICIA LOW BY PGA WEST FAIRWAYS ASSOCIATION

Tentative Ruling: Granted.

Summary judgment granted as to moving party, PGA West Fairways Association, only.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff, Patricia Low, alleges she has a residence located at 81160 Kingston Heath in La Quinta, which is within the PGA West Fairways development. Plaintiff alleges that Defendant, PGA West Fairways Association (Association) and Defendant, Craig Detloff (Detloff), who lives next door to Plaintiff, engaged in a scheme to vandalize/cut her Ficus trees that exist on the common property line between Plaintiff's property and Detloff's property despite her express instruction that her trees were not to be cut. Plaintiff filed this lawsuit on 1/24/25 because of the unlawful and illegal destruction of her property. Thereafter, on 5/12/25 and 10/3/25, the Association caused or directed the landscaper to cut Plaintiff's Ficus trees again without Plaintiff's express permission. On 10/3/25, the landscaper cut a hole in the middle of the Ficus trees at eye level rather than trimming the tops or thinning the edges. Plaintiff also alleges that after filing the action, Detloff has been seen in a tree peering into her yard, which has made her concerned for her safety.

Plaintiff's operative Supplemental Complaint was filed on 5/19/26 alleging five causes of action: 1) breach of governing documents (against the Association only); 2) trespass; 3) violation of Civil Code § 3346; 4) violation of CCP § 733; and, 5) invasion of privacy (against Detloff only).

Defendant, PGA West Fairways Association (Association), brings this motion for summary judgment alternatively, for summary adjudication as to the 1st through 4th causes of action on the ground that there are no triable issues of material fact as to the Association. (CCP § 437c.) The Association argues that it has upheld its contractual duty to install and maintain the side yard landscaping of the subject property and that Plaintiff misunderstands the governing documents; that it has a lawful right of entry to fulfill its obligation to perform the maintenance, which supersedes Plaintiff's authority; that Civil Code § 3346 and CCP § 733 are inapplicable; that the Ficus trees (Hedge) were never harmed and remain in good condition; that it is the Association's Hedge; and that the Association has no duty to ensure Plaintiff's personal preferences concerning the privacy of her backyard.

Plaintiff, Patricia Low, opposes the motion arguing that the Association does not identify any issues for resolution as required by the CCP and Rules of Court; that the Association relies on sections of the CC&Rs that are not relevant and fails to address the sections alleged to have been breached; that the Association was not performing maintenance on Plaintiff's property but, on Detloff's property; and, that Plaintiff withdrew any consent to enter her property, which the Association had honored for four years. Plaintiff also argues that Ficus trees are not hedges subject to height restrictions in the CC&Rs; that Detloff complained about the height of the Ficus trees because he wanted a better view, which he was not entitled to and he really wanted to peer into her backyard; and, that the Association maliciously vandalized her trees after it adopted a rule eliminating any height restrictions for side yard hedges.

The Reply asserts that the Association has the right and responsibility for landscape maintenance of Plaintiff's rear yard; that the Ficus trees were planted by the Association, which has the right and duty

to maintain them; that courts defer to maintenance decisions of HOA boards and such decisions are also protected by the Business Judgment Rule; that the Association was thrust into a situation between two high-conflict adjacent owners, which is the reason that courts to defer to the HOA; that trimming the Ficus trees has caused no permanent damage; and that Plaintiff cannot establish disparate treatment nor that the Association's decisions were made in bad faith.

Summary Judgment/Adjudication

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) A defendant can meet his initial burden by showing that one or more elements of the cause of action cannot be established, or that there is a complete defense. (CCP § 437c(p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action or show that the plaintiff lacks evidence. (*Chavez v. Glock* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claims fail as a matter of law. (*Eriksson v. Nunnick* (2011) 191 Cal.App.4th 826, 849 (applying rule to issues of duty).) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar*, supra, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence but must show that the plaintiff cannot reasonably obtain evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

Once that burden has been met, the burden shifts to the opposing party to produce admissible evidence showing a triable issue of material fact exists. (CCP § 437c(p)(2); *Arcienaga v. Bank of San Bernardino* (1997) 52 Cal.App.4th 213, 231.) Although summary judgment is no longer considered a "disfavored" procedure, the rule continues that the moving party's evidence must be strictly construed, while the opposing party's evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832.) An opposing party may not rely upon the allegations or denials in its pleadings, but must "set forth the specific facts showing that a triable issue of material fact exists." (CCP § 437c(p)(2).) Claims and theories not supported by admissible evidence do not raise triable issues of fact. (*Rochlis v. Walt Disney Co.* (1993) 19 Cal.App.4th 201, 219, *disapproved on another ground in Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238.)

A motion for summary judgment may be granted where it is shown that the "action has *no* merit or that there is no defense to the action or proceeding." (CCP § 437c(a).) A motion for summary adjudication can be granted only if it *completely disposes* of the cause of action, affirmative defense, claim for damages or issue of duty. (CCP § 437c(f)(1).) Although summary judgment/adjudication is no longer considered a "disfavored" procedure, the rule continues that the moving party's evidence must be strictly construed, while the opposing party's evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal. App. 4th 832.)

1st Cause of Action - Breach of Governing Documents

"A cause of action for breach of contract requires pleading of a contract, plaintiff's performance or excuse for failure to perform, defendant's breach and damage to plaintiff resulting therefrom." (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal. App. 4th 1004, 1031.) A community association's CC&Rs are considered to be a contract. (*Villa Milano Homeowners Assn. v. Il Davorge* (2000) 84 Cal.App.4th 819, 825.) CC&Rs are equitable servitudes enforced as contracts. (*Ibid.*) They are binding and enforceable on owners with actual or constructive knowledge when the deed is conveyed. (*Citizens for Covenant Compliance v. Anderson* (1995) 12 Cal.4th 345, 363.)

Here, Plaintiff's Supplemental Complaint alleges that under the terms of the CC&Rs, Rule & Regulations, and Guidelines, she has performed her obligations and duties as a member of the Association. (Supp. Compl. ¶ 18.) It is alleged that the Association vandalized and unlawfully cut

Plaintiff's trees in breach of Rules & Regulations section 4.3 and Plaintiff's express prohibition. (*Id.* ¶¶ 20-21.) This breach allegedly caused damage to Plaintiff's property. (*Id.* ¶ 22.)

The Association asserts that it is a nonprofit mutual benefit corporation in La Quinta whose members own residential lots of condominiums (Community). (Undisputed Material Fact [UMF] Nos. 1, 3, 57, 59.) The Community is divided into Special Benefit Areas or Sub-Associations in which certain Association expenses are attributable to only those owners whose separate interests are within the Special Benefits Area. (UMF Nos. 4, 60.) The expenses may include maintenance, repair, replacement and reconstruction of improvements in the Special Benefits Common Area. (UMF Nos. 5, 61.)

The Community is governed by Primary CC&Rs. (UMF Nos. 6, 62.) The Sub-Association at issue is the Toll Brothers Special Benefits Area (Toll Brothers), which covers certain lots in certain tracts. (UMF Nos. 7, 63.) Members within Toll Brothers are also subject to Supplemental CC&Rs. (UMF Nos. 8, 64.) The Association asserts that the Primary CC&Rs include certain relevant provisions. (UMF Nos. 9-18, 65-74.) The Supplemental CC&Rs contain certain additional relevant provisions. (UMF Nos. 19-26, 75-82.) Plaintiff owns Lot 28 in Tract No. 29349-1, which is within the Toll Brothers and is governed by the Primary CC&Rs and Supplemental CC&Rs. (UMF Nos. 28-29, 84-85.)

The Ficus trees were planted by the Association before this lawsuit was filed. (UMF Nos. 30, 86.) Plaintiff's letter to the Association dated 6/11/21 stated that no one is authorized to cut any of the subject trees. (UMF Nos. 31, 87.) The Association asserts it has a lawful right of entry onto the subject property to perform landscaping maintenance on the Ficus trees or "Hedge". (UMF Nos. 34, 90.) The Association asserts its authority under the CC&Rs supersedes Plaintiff's 6/11/21 letter and ratified the maintenance of the trees on 10/22/24, 5/12/25, and 10/3/25. (UMF Nos. 36, 92.) Landscaping was performed by Vintage Landscaping by a certified arborist who ensured the trees were not harmed and are thriving. (UMF Nos. 37-46, 48, 93-102.) Plaintiff has not obtained an arborist opinion to substantiate that the trees have been damaged. (UMF Nos. 47, 103.)

In addition, the Association argues that "in California, homeowners' associations have broad judicial deference with regard to common area maintenance decisions and are protected by the Corporations Code § 7231 (the "Business Judgment Rule") in connection with resolving disputes with homeowners." (Memorandum of Points & Authorities [MPA], p. 12:10-13; *Lamden v. La Jolla shores Clubdominium Homeowners Assn.* (1999) 21 Cal.4th 249, 259.) Under *Lamden*, in general, "courts will uphold decisions made by the governing board of an owners association so long as they represent good faith efforts to further the purposes of the common interest development, are consistent with the development's governing documents, and comply with public policy." (*Lamden, supra.* at 264.) The *Lamden* Court held

[W]here a duly constituted community association board, upon reasonable investigation, in good faith and with regard for the best interests of the community association and its members, exercises discretion within the scope of its authority under relevant statutes, covenants and restrictions to select among means for discharging an obligation to maintain and repair a development's common areas, courts should defer to the board's authority and presumed expertise. (*Id.* at 265.)

The Association points out that the CC&Rs (aka maintenance provisions) state that all landscape maintenance areas in Toll Brothers are to be maintained exclusively by the Association. (UMF Nos. 35, 91.) The Association asserts it has fulfilled its obligations and duties under the applicable CC&Rs, which Plaintiff had notice of. (UMF Nos. 49-50, 105-106.) The Association asserts it has discretion to enforce the maintenance provisions based on the work orders received from owners and on an individual basis, and that it dutifully upheld those provisions. (UMF Nos. 51-53, 107-109.) Based on these facts, the Association has established its authority under the CC&Rs to maintain the Ficus trees, which were planted by the Association.

In her response to the Association's separate statement, Plaintiff purports to "dispute" most of the facts presented by asserting that they are not "material facts." (Plaintiff's Responsive Separate Statement [PRSS], UMF Nos. 3-7, 9-29, 59-63, 65-82.) As to UMF Nos. 3-7, 9-26, 59-63, and 65-82, Plaintiff states: "This is a general and hypothetical statement showing no connection to Plaintiff's claims or Defendant's defenses." (see e.g., PRSS, UMF Nos. 3-7, 9-26, 59-63, 65-82.)

In the context of the 1st cause of action, Plaintiff's statement is exceedingly unclear and inaccurate. It does not establish that the Association lacks authority under the CC&Rs to maintain landscaping on common areas. Moreover, to properly oppose the evidence presented by the Association, Plaintiff must "set forth the specific facts showing that a triable issue of material fact exists." (CCP § 437c(p)(2).) Otherwise, the Association's facts are actually undisputed. (PRSS, UMF Nos. 3-7, 9-29, 59-63, 65-82.) Notably, Plaintiff does not dispute that the Association *planted the Ficus trees*. (PRSS, UMF Nos. 30, 86.)

Plaintiff takes issue with the Association's reference to the Ficus trees as a "Hedge". (PRSS, UMF Nos. 30-31, 86-87.) However, this distinction makes no difference.

As to some other facts, Plaintiff cites to certain evidence to purportedly dispute the fact. For instance, the Association asserts it and its agents have the lawful right of entry onto the Subject Property to perform landscaping maintenance on the Hedge (Ficus trees). (UMF Nos. 34, 90.) In reviewing the Association's evidence in support, the CC&Rs do support this fact. However, in response, Plaintiff states "Disputed", and cites to the deposition testimony of Brian Valenzuela (landscaper) where he states that he trimmed the trees from Detloff's property (not from Plaintiff's property.) (PRSS, UMF Nos. 34, 90.) Plaintiff also references three exhibits in its 913-page compendium: 1) text messages between Plaintiff and Jerry McDonald (Ex. "9") regarding maintenance of other "trees" including a palm tree; 2) Plaintiff's 6/11/21 response letter (Ex. "11") instructing no trimming was to be done without her permission; and, 3) Plaintiff's entire declaration (Ex. "12") without reference to a particular paragraph – "¶ ____". (Plaintiff's Compendium of Exhibits [COE].) None of this evidence actually raises a triable issue of material fact as to UMF Nos. 34 and 90. The remaining facts are similarly disputed.

In another instance, Plaintiff attempts to informally object to a purported legal conclusion. (PRSS, UMF Nos. 36, 92.) However, "[a]ll written objections to evidence must be served and filed separately from the other papers ... [and] must not be restated or reargued in the separate statement." (Cal. Rules of Court, Rule 3.1354(b).) The objections must also follow a specific format. (*Ibid.*) Plaintiff did not provide formal written objections. Rather, Plaintiff essentially argues that the Association has not presented any material facts to support its position. However, as discussed above, this is not an accurate depiction of the Association's motion.

In sum, Plaintiff has not established that the Association did not act in good faith to further the purposes of the common interest development, acted inconsistently with the development's governing documents, and/or failed to comply with public policy." (*Lamden, supra.* at 264.) Thus, Plaintiff has not met her burden. The motion is granted in favor of the Association on this cause of action. GRANTED.

2nd Cause of Action - Trespass

"A trespass is an invasion of the interest in the exclusive possession of land, as by entry upon it." (*Capogeannis v. Superior Court* (1993) 12 Cal.App.4th 668, 674.) "The elements of trespass are: (1) the plaintiff's ownership *or control* of the property; (2) the defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm." (*Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 261–262.)

The Supplemental Complaint alleges that Defendants intentionally entered Plaintiff's property or caused others to enter without her permission to cut her Ficus trees. (Supp. Compl. ¶¶ 24-25.) She had instructed Defendants they could not enter her property to cut the trees without her being there. (*Id.* ¶ 25.) She alleges that the Association had permission to enter to perform regular landscape maintenance but, its actions in this case exceeded that authority. (*Id.* ¶ 26.) It is alleged her property was damaged by the illegal cutting, trimming, and destruction of her trees for which entry was a substantial factor in causing harm entitling her to damages. (*Id.* ¶¶ 28-29.)

The Association asserts that the maintenance provisions in the CC&Rs authorize it and its agents including Vintage Landscape to enter Plaintiff's property and perform landscaping maintenance. (UMF Nos. 9-26, 121-138.) Plaintiff's letter dated 6/11/21 does not supersede the authorization granted to the Association and its agents (and recorded). (UMF No. 31, 143.) Entry onto the subject property by the Association's management team or Vintage Landscape was lawful as they were agents of the Association. (UMF Nos. 9-26, 34, 121-138, 146.)

Plaintiff's response is the same as to these facts as discussed previously. Plaintiff has not established that the Association trespassed on her property. Thus, Plaintiff has not met her burden. GRANTED.

3rd and 4th Causes of Action - Violation of Civil Code § 3346 and CCP § 733

These statutes provide for treble damages for wrongful injuries to trees or trespass for cutting and carrying away trees or timber.

Here, the Association asserts that the Ficus trees (Hedge) were planted and maintained by the Association through its agent Vintage Landscape. (UMF Nos. 169-177.) Vintage Landscape has an employee who is a certified arborist and ensured the trees were never harmed nor in jeopardy. (UMF No. 178.) Plaintiff did not obtain an arborist opinion. (UMF No. 179.) The trees continue to grow and are thriving. (UMF No. 180.)

Plaintiff does not dispute that the trees were planted by the Association. (PRSS, UMF No. 169.) She only takes issue with the reference to the Ficus trees as a "Hedge". (*Ibid.*) She also asserts that Vintage Landscape entered her property without her permission and against her written instructions. (PRSS, UMF Nos. 172-173, 175-179.) She concludes by asserting that the harm that she seeks recovery for occurred in 2024 and 2025; she does not claim the trees were permanently damaged. (PRSS, UMF No. 180.) Importantly, Plaintiff has not established the alleged injuries to her trees. Thus, Plaintiff has not met her burden. GRANTED.

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CASE #	CASE NAME	HEARING NAME
CVPS2500640	LOW VS PGA WEST FAIRWAYS ASSOCIATION, A CA NON-PROFIT MUTUAL BENEFIT COMMON INTEREST DEVELOPMENT CORPORATION	HEARING ON MOTION FOR SUMMARY ADJUDICATION ON 1ST AMENDED COMPLAINT OF PATRICIA LOW BY DEFENDANT CRAIG DETLOFF

Tentative Ruling: Granted.

Summary judgment granted as to moving party, Defendant Craig Detloff, only.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff, Patricia Low, alleges she has a residence located at 81160 Kingston Heath in La Quinta, which is within the PGA West Fairways development. Plaintiff alleges that Defendant, PGA West Fairways